

		the authority you intend to rely on ahead of time so that I have a chance to review it and so that a proper conference may take place..." (Sari Decl., ¶ 8, Ex. B.) Defendant did not engage in this effort, opting instead to rely upon a form letter as its meet and confer. The Court ORDERS the parties to meaningfully meet and confer in person or by telephone concerning the issues raised in the demurrer with an eye toward reducing the number of issues or eliminating the need for a demurrer. Defendant is to file and serve a declaration no later than nine (9) court days before the hearing date describing the parties' meet and confer efforts, and specifying what issues have been resolved, or remain for the Court to resolve. If no declaration is timely filed, the Court will construe this to mean that the issues have been resolved and will take the demurrer off calendar. Moving Defendant to give notice.
2	Madani v. 2900 & 2910 E. Miraloma Ave. LLC 2025-01482955 Demurrer to Cross Complaint	Defendant/cross-defendant 2900 & 2910 E. Miraloma Avenue LLC's (Miraloma) Demurrer to Defendant/cross-defendant/cross-complainant Jones Roofing, Inc. (Jones Roofing) Cross-complaint is OVERRULED as MOOT. Fifth cause of action for express indemnity "Express contractual indemnity involves the agreement between two parties that one will indemnify the other in certain circumstances specified in the contract of indemnity." (<i>Irm Corp. v. Carlson</i> (1986) 179 Cal.App.3d 94, 109 [citation omitted].) Miraloma demurs on the ground the cross-complaint fails to allege the existence of a contract that contains a contractual indemnity provision. In opposition, Jones Roofing states the fifth cause of action for express indemnity is against Moes 25-50 only and Miraloma has been identified as Moe 1. As such, Jones Roofing contends the demurrer should be considered moot because it is not at issue in the cross-complaint against Miraloma. Jones Roofing further contends counsel has met and conferred with counsel and agreed that express indemnity is not a cause of action against Miraloma. Given the above, the Court OVERRULES the demurrer as MOOT. The Court ORDERS Miraloma to file an answer within 10 days.